

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

CAROLINE CHERREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANGELA CRAWFORD, Shield No. 9667, POLICE
OFFICER DEWEESE, Shield No. 4406, and POLICE
OFFICERS JOHN DOES #1-4 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 14, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: Corporation Counsel, City of New York, 100 Church Street, NY, NY 10007
Defendant Police Officer Angela Crawford, Shield No. 9776, 112th Precinct, 68-40
Austin Street, Forest Hills, New York 11375

Defendant Police Officer DeWeese, Shield No. 4406, Housing Bureau Bronx/Queens,
737 Melrose Avenue, Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

CAROLINE CHERREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANGELA CRAWFORD, Shield No. 9667, POLICE
OFFICER DEWEESE, Shield No. 4406, and POLICE
OFFICERS JOHN DOES #1-4 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, CAROLINE CHERREZ, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 16, 2014, at approximately 8:30 p.m., plaintiff Caroline Cherrez was subjected to an unlawful stop, frisk, search, detention, false arrest and false imprisonment while lawfully present in the vicinity of 175 East 112th Street, Apt. 6D, New York, New York. Additionally, defendant Police Officers assaulted and battered plaintiff, and subjected her to excessive force when they, amongst other things, applied plaintiff's handcuffs in an excessively manner, pulled plaintiff's hair, and shoved plaintiff against a wall. Thereafter, the defendants maliciously prosecuted plaintiff and subjected her to violations of her due process rights and right to a fair trial under the 5th Amendment to the United States Constitution. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined plaintiff and caused the unjustifiable arrest and prosecution of plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff Caroline Cherrez is a resident of New York State.

3. Police Officer Angela Crawford, Shield No. 9776, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, Police Officer Angela Crawford, Shield No. 9776, was assigned to the PSA 5 Command.

5. Police Officer Angela Crawford, Shield No. 9776, is being sued in her individual and official capacities.

6. Police Officer DeWeese, Shield No. 4406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, Police Officer DeWeese, Shield No. 4406, was assigned to the PSA 5 Command.

8. Police Officer DeWeese, Shield No. 4406, is being sued in her individual and official capacities.

9. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim with the CITY OF NEW YORK, in compliance with the General Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On February 16, 2014, at approximately 8:30 p.m., plaintiff lawfully exited her apartment, located at 175 East 112th Street, Apt. 6D, New York, New York, and walked to the trash compactor located in her hallway to dispose of trash, when defendant Police Officers Angela Crawford and DeWeese, who were standing in the hallway in the vicinity of the trash compactor, suddenly and aggressively began screaming at plaintiff about what was good for her health.

19. Plaintiff returned to her apartment without engaging the officers in a debate about what was good for her health and, upon information and belief, defendants proceeded to walk downstairs in the building, presumably to conduct other police business.

20. Shortly thereafter, defendants returned to the floor where plaintiff's apartment was located.

21. Plaintiff was inside of her apartment, standing by the front door, with the door slightly ajar, when defendants returned to the floor where her apartment was located.

22. Defendants approached the front door of plaintiff's apartment and asked if they could come inside.

23. Plaintiff told defendants that they could not come inside because her daughter, who was inside the apartment, suffered from severe anxiety around police officers.

24. Nevertheless, without reasonable suspicion, probable cause, or any legal justification, defendants became visibly angry, pulled claimant's hair, and unlawfully and forcibly entered plaintiff's apartment.

25. At no time did plaintiff commit a crime or violate any statute, nor did the officers have probable cause to believe she violated the law.

26. Defendant Police Officer Crawford proceeded to violently throw plaintiff against a wall and handcuff plaintiff inside of her apartment in an excessively tight manner, causing severe pain to plaintiff's wrists and bruises to form where the handcuffs were located.

27. Plaintiff requested numerous times for defendants to loosen the handcuffs but they refused.

28. Defendants then unlawfully detained plaintiff in excessively tight handcuffs for approximately one hour.

29. Thereafter, defendants issued plaintiff a summons containing false allegations that plaintiff caused public alarm by engaging in violent and threatening behavior and that plaintiff committed the crime of Disorderly Conduct.

30. As a result of the false allegations alleged against plaintiff, plaintiff was forced to appear in New York County Criminal Court one time on May 2, 2014, whereat all charges against plaintiff were dismissed in their entirety for being legally insufficient.

31. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful stop, question, frisk, false arrest, false imprisonment, unlawful seizure, malicious prosecution, assault and battery of plaintiff.

32. The unlawful stop, question, frisk, false arrest, false imprisonment, unlawful seizure, malicious prosecution, assault and battery of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth and Fourteenth Amendment Rights

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be falsely arrested, falsely imprisoned, unlawfully seized, and maliciously prosecuted without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

35. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Malicious Prosecution

40. Plaintiff repeats and realleges paragraphs 1 through 39 as if fully set forth herein.

41. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

42. Defendants commenced and continued a criminal proceeding against plaintiff.

43. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

44. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

45. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Negligence

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants owed a duty of care to plaintiff.

52. To the extent the defendant police officers maintain that the physical injury caused to plaintiff when her hair was pulled, she was violently shoved against a wall, and handcuffs were placed on her in an excessively tight manner were caused by accidental or negligent conduct by the officers, then plaintiff's injuries were caused because defendants breached their duty of care by accidentally pulling her hair, shoving her into a wall, and placing handcuffs on her in an excessively tight manner.

53. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

54. All of the foregoing occurred without any fault or provocation by plaintiff.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe physical emotional distress to plaintiff, Caroline Cherrez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

59. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Assault

62. Plaintiff repeats and realleges paragraphs 1 through 61 as if fully set forth herein.

63. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Battery

66. Plaintiff repeats and realleges paragraphs 1 through 65 as if fully set forth herein.

67. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive pulled plaintiff's hair, violently shoved her into a wall, and placed her in handcuffs in an excessively tight manner, with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

68. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

69. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The use of excessive force by defendants by pulling her hair, violently shoving her into a wall, and placing her in handcuffs in an excessively tight manner, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

73. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 74 with the same force and effect as if fully set forth herein.

76. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

77. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

78. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

79. In withholding/creating false evidence against plaintiff Caroline Cherrez and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

80. As a result of the foregoing, plaintiff Caroline Cherrez, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

85. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Failure to Intervene

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

92. Defendants failed to intervene to prevent the unlawful conduct described herein.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Caroline Cherrez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 May 14, 2015

By: /s/ _____
 STUART E. JACOBS
 DAVID M. HAZAN
 JACOBS & HAZAN, LLP
 Attorneys for Plaintiff
 11 Park Place, 10th Floor
 New York, NY 10007
 (212) 577-2690

TO: City of New York, 100 Church Street, NY, NY 10007
 Defendant Police Officer Angela Crawford, Tax Reg. 953788, 112th Precinct, 68-40
 Austin Street, Forest Hills, New York 11375
 Defendant Police Officer DeWeese, Shield No. 4406, Housing Bureau Bronx/Queens,
 737 Melrose Avenue, Bronx, New York 10451

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 14, 2015

/s/
STUART E. JACOBS, ESQ.